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2018 CA 000543

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

PAM CHILDERS
CLERK & COMPTROLLER
FILED

2018 JUN 13 A 10:52

ESCAMBIA COUNTY, FL

DEEPGULF, INC.

TOKE OIL AND GAS S.A.,

Plaintiffs,

vs.

MARC M. MOSZKOWSKI ,

Defendant.

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CASE NO. 3:18-cv-01466-MCR-MJF

JOINT MOTION TO EXTEND
DATES IN FINAL SCHEDULING ORDER

COME NOW, undersigned counsel for both parties, and pursuant to Rule 6.1, Rules of the United States District Court for the Northern District of Florida, and in support of their Joint Motion to Extend Dates in Final Scheduling Order, would show unto this Honorable Court, the following, to wit:

1. On 25 March 2019, counsel for Defendant, Mary Allie Boller, appeared as counsel of record in the above referenced matter.
2. On 27 March 2019, counsel for Defendant, Thomas R. Boller, was granted permission to appear *pro hac vice* on Defendant's behalf in the above referenced matter.
3. The current discovery deadline is 29 March 2019, and the current

dispositive motion deadline is 29 April 2019.

4. Considering Defendant has proceeded as a *pro se* litigant throughout the duration of this matter, defense counsel requests time to amend Defendant's Answer and Counter-Claim, as well as to respond to, and propound, discovery appropriately.
5. Defense counsel has conferred with counsel for Plaintiffs, who have agreed that, pending this Honorable Court's approval, an extension of times set out within the final scheduling Order would be beneficial to all parties, in that such extension would allow time for the parties to narrow the issues and efficiently accelerate this matter toward resolution.
6. Plaintiffs may well wish to propound additional discovery as necessary based upon Defendant's amended pleadings.
7. As such, the parties would submit the following proposed stipulations as to extended deadlines:
 - a. Defendant may amend his Answer and Counterclaim on or before 15 April 2019;
 - b. Defendant shall supplement his discovery responses in accordance with the Rules on or before 15 May 2019;

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- c. Discovery shall be propounded by Defendant to Plaintiffs on or before 30 April 2019;
- d. Plaintiffs shall respond to Defendant's Discovery Requests on or before 30 May 2019;
- e. All discovery to be completed by 30 July 2019;
- f. Defendant shall be deposed in the Northern District of Florida, in person, absent unforeseen circumstances, on or before 30 July 2019;
- g. Mediation shall occur on or before 31 July 2019; and
- h. All dispositive motions shall be filed on or before 15 August 2019.

WHEREFORE, the parties move this Honorable Court for entry of an Order granting the parties an extension of time according to the above referenced stipulations, or to grant the parties whatever further or different relief this Honorable Court may deem warranted.

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Respectfully submitted this 29th day of March 2019.

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